

House File 189

H-1037

1 Amend House File 189 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 257.11B, subsection 1, paragraph b,
4 subparagraph (1), Code 2025, is amended to read as follows:

5 (1) "*Qualified educational expenses*" includes tuition and
6 fees at a nonpublic school, textbooks, fees or payments for
7 educational therapies, including tutoring or cognitive skills
8 training, curriculum fees, software, and materials for a course
9 of study for a specific subject matter or grade level, tuition
10 or fees for nonpublic online education programs, tuition for
11 vocational and life skills education approved by the department
12 of education, education materials and services for pupils
13 with disabilities from an accredited provider, including the
14 cost of paraprofessionals and assistants who are trained in
15 accordance with state law, standardized test fees, ~~and~~ advanced
16 placement examinations or examinations related to postsecondary
17 education admission or credentialing, and fees associated with
18 the cost of the pupil participating in an extracurricular
19 interscholastic athletic contest or competition provided by a
20 school district pursuant to section 280.13D.

21 Sec. _____. Section 257.11B, subsection 2, paragraph b, Code
22 2025, is amended to read as follows:

23 b. Education savings account payments shall be made
24 available to parents and guardians in the manner authorized
25 under subsection 5 for the payment of qualified educational
26 expenses as provided in this section. Parents and guardians
27 shall first use education savings account payments for all
28 qualified educational expenses that are fees associated with
29 the costs of the pupil participating in an extracurricular
30 interscholastic athletic contest or competition provided by
31 a school district pursuant to section 280.13D. Parents and
32 guardians shall ~~first~~ next use education savings account
33 payments for all qualified educational expenses that
34 are tuition and fees for which the parent or guardian is
35 responsible for payment at the pupil's nonpublic school prior

1 to using the education savings account for other qualified
2 educational expenses.>

3 2. Page 1, by striking lines 23 through 32 and inserting:

4 <c. If the board of directors of a school district has
5 established a fee for the cost of a student's participation
6 in an extracurricular interscholastic athletic contest or
7 competition, the nonpublic school in which a student who
8 is participating in a contest or competition at a public
9 school pursuant to paragraph "a" or "b" is enrolled shall be
10 responsible for the payment of such fee. If the student has an
11 account under the education savings account program established
12 under section 257.11B, and the nonpublic school accepts payment
13 from the pupil's parent or guardian using moneys from the
14 pupil's individual account in the education savings account
15 fund, the nonpublic school shall use not more than five hundred
16 dollars from the moneys received in the payment to pay the
17 fee.>

18 3. Title page, by striking lines 1 through 4 and inserting
19 <An Act relating to students enrolled in nonpublic schools,
20 including by modifying provisions related to the eligibility
21 of such students to compete in extracurricular interscholastic
22 athletic contests or competitions provided by public schools
23 and provisions related to the education savings account
24 program, and including effective date provisions.>

25 4. By renumbering as necessary.

JACOBY of Johnson